

26STCV00981 26STCV00981

County: los-angeles

Division: Civil Law and Motion

Department: 311

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Case Number: 26STCV00981 Hearing Date: September 23, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

26STCV00981

SRS

DISTRIBUTION, INC., A DELAWARE CORPORATION vs ABI CONSTRUCTION INC., A
CALIFORNIA CORPORATION, et al.

September

23, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF'S MOTION TO COMPEL DEFENDANT ABI CONSTRUCTION INC.'S RESPONSE TO
REQUESTS FOR PRODUCTION OF DOCUMENTS (SET ONE) BY PLAINTIFF; REQUEST FOR
MONETARY SANCTIONS. PLAINTIFF'S MOTION TO COMPEL DEFENDANT SHLOMY ABITAN'S

RESPONSE TO REQUESTS FOR PRODUCTION OF DOCUMENTS (SET ONE) BY PLAINTIFF;
REQUEST FOR MONETARY SANCTIONS. PLAINTIFF'S MOTION FOR AN ORDER THAT MATTERS
FOR ADMISSION BE DEEMED ADMITTED AGAINST DEFENDANT ABI CONSTRUCTION INC.;
REQUEST FOR MONETARY SANCTIONS. PLAINTIFF'S MOTION FOR AN ORDER THAT MATTERS
FOR ADMISSION BE DEEMED ADMITTED AGAINST DEFENDANT SHLOMY ABITAN; REQUEST FOR
MONETARY SANCTIONS.

RULING:

The Court grants all four
unopposed Motions, as prayed.

The Court will sign and
file the proposed Orders received on August 14, 2026.

Plaintiff to give notice.

I.

BACKGROUND

On January 12, 2026, SRS
DISTRIBUTION, INC. (Plaintiff) filed a Complaint against ABI CONSTRUCTION INC.;
SHLOMY ABITAN; and THE WESTERN SURETY COMPANY (Defendants), listing Causes of
Action for:

(1)

BREACH OF CONTRACT;

(2)

ON COMMON COUNTS;

(3)

BREACH OF PERSONAL GUARANTY; and

(4)

ENFORCEMENT OF CLAIM ON CONTRACTOR'S LICENSE BOND.

Plaintiff alleges that it
supplied materials for Defendants' business, but they breached a written
contract, by failing to pay the sum of \$365,461.53.

On August 14, 2026, Plaintiff filed four discovery Motions to compel initial document responses, and to deem requests admitted, on grounds that Defendants ABI CONSTRUCTION INC. and SHLOMY ABITAN failed to serve any responses to Requests for Production of Documents and Requests for Admissions. Plaintiff also requests monetary sanctions against each Defendant (\$985.00 per motion).

Defendants have filed no Opposition to these matters.

II.

LEGAL STANDARD

A motion to compel initial discovery responses need only show that discovery was properly served on the opposing party, the time to respond expired, and no response was served. (Leach v. Superior Court (1980) 111 Cal.App.3d 902, 905-906; Code Civ. Proc., §§ 2030.290 [compelling initial interrogatory responses], 2031.300 [compelling initial document requests].) A motion to compel initial discovery responses need not show good cause, meeting and conferring, or timely filing, and need not be accompanied by a separate statement. (Sinaiko Healthcare Consulting, Inc. v. Pac. Healthcare Consultants (2007) 148 Cal.App.4th 390, 404.)

Monetary

discovery sanctions are mandatory as to parties losing discovery motions, unless courts find substantial justification or other injustice. (Deck v. Devs. Inv. Co. (2023) 89 Cal.App.5th 808, 830.) “[T]he phrase “substantial justification” has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (Kwan Software Engineering, Inc. v. Hennings (2020) 58 Cal.App.5th 57, 75.) “If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with ‘substantial justification.’” (Doe v. U.S. Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1435.) Courts may determine substantial justification based on the “whole picture” of the discovery dispute, including where parties partially prevailed as to some discovery items in dispute, or where discovery concessions occurred only after improperly asserted objections. (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1297.)

III.

ANALYSIS

Plaintiff reports that Defendants failed to serve discovery responses, and Plaintiff provided a meet and confer letter about overdue responses, giving an extension of time to respond.

The failure to file a proper and timely opposition in trial court creates a waiver of the issues on any appeal. (Bell v. Am. Title Ins. Co. (1991) 226 Cal.App.3d 1589, 1602; Cabrini Villas Homeowners Assn. v. Haghverdian (2003) 111 Cal.App.4th 683, 693 [appellate court will not consider any erroneous rulings where an objection could have been made].) “A failure to oppose a motion may be deemed a consent to the granting of the motion.” (Cal. Rules of Court, rule 8.54(c).)

The burden of justifying any failure to respond to discovery requests remains at all times with the responding party. (E.g., Williams v. Superior Court (2017) 3 Cal.5th 531, 541.)

Here, Defendants filed no Opposition to address the burden to show any justification in avoidance of sanctions.

IV.

CONCLUSION

Therefore, the Court grants all four Motions, as prayed.